Tidewater Managed Database — Service Agreement

Tidewater Cloud, Inc. · Version 4.2 · Effective September 1, 2026

Sample document for a demo. Tidewater Cloud is a fictional company; this is not a real contract.

1. Definitions

1.1 “Tidewater” means Tidewater Cloud, Inc. “Customer” means the organization that accepts this Agreement. “Service” means the Tidewater Managed Database service, including backups, monitoring and the web console.

1.2 “Customer Data” means data that Customer or its users store in the Service. “Service Metadata” means information about how the Service is used, such as query timings, error codes, table sizes and feature usage, but not the contents of Customer Data.

2. The Service

2.1 Tidewater will provide the Service in accordance with the Documentation and the plan Customer selects in the console.

2.2 Tidewater may update or improve the Service from time to time. Tidewater will give at least 30 days’ notice before removing a feature that Customer is actively using.

2.3 The Service runs in data centers operated by Tidewater or its subprocessors. A current list of subprocessors is available on request.

3. Fees and Payment

3.1 Customer will pay the fees for its selected plan monthly in advance. Usage above the plan’s included storage is billed monthly in arrears.

3.2 Invoices are due within 30 days. Late amounts accrue interest at 1.5% per month or the maximum permitted by law, whichever is lower.

3.3 Fees do not include taxes. Customer is responsible for all applicable taxes other than taxes on Tidewater’s income.

3.4 Tidewater may increase fees by up to 15% at the start of each Renewal Term by giving Customer at least 30 days’ notice by email.

4. Customer Responsibilities

4.1 Customer is responsible for its users’ compliance with this Agreement and for keeping its account credentials confidential.

4.2 Customer will not use the Service to store data that it does not have the right to store, or to run workloads that disrupt other customers.

5. Support

5.1 Tidewater provides support by email and through the console. Tidewater will respond to support requests within one business day.

5.2 Emergency phone support is available on the Business plan and above.

5.3 To diagnose and improve the Service, Tidewater collects Service Metadata from all customer databases. Customer may ask Tidewater to stop using its Service Metadata for product improvement by sending written notice to privacy@tidewater.example; the change takes effect within 45 days of receipt.

6. Data Protection and Security

6.1 Tidewater will maintain reasonable administrative, physical and technical safeguards for Customer Data.

6.2 Tidewater will notify Customer without undue delay after becoming aware of a breach of security affecting Customer Data.

6.3 Customer remains responsible for configuring database users, network rules and encryption settings that are available to it in the console.

7. Backups

7.1 Tidewater takes automated daily backups of each database and keeps them for 14 days.

7.2 Restores requested through the console are free. Restores that require assistance from Tidewater staff are billed at the then-current professional services rate.

8. Term and Termination

8.1 This Agreement starts on the date Customer accepts it and continues for an initial term of 12 months.

8.2 Either party may terminate this Agreement if the other party materially breaches it and does not cure the breach within 30 days of written notice.

8.3 After termination, Customer has 10 days to export Customer Data using the console. After that period, Tidewater will delete Customer Data and all backups, and deleted data cannot be recovered.

8.4 Exports of more than 50 GB, or exports in a format other than standard database dump files, are subject to a data export assistance fee of $0.12 per GB.

9. Publicity

9.1 Neither party will issue a press release about this Agreement without the other party's written consent.

9.2 Tidewater may identify Customer as a Tidewater customer, including by displaying Customer's name and logo on Tidewater's website and in sales materials, unless Customer asks Tidewater in writing not to.

10. Warranties and Liability

10.1 Each party warrants that it has the authority to enter into this Agreement.

10.2 EXCEPT AS STATED IN THIS AGREEMENT, THE SERVICE IS PROVIDED "AS IS" AND TIDEWATER DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED.

10.3 Each party's total liability under this Agreement is limited to the fees Customer paid in the one (1) month before the event giving rise to the claim.

11. Renewal

11.1 This Agreement renews automatically for successive 12-month terms (each a "Renewal Term") unless either party gives notice of non-renewal at least 60 days before the end of the current term.

12. General

12.1 This Agreement is governed by the laws of the State of Delaware.

12.2 Tidewater may update this Agreement by posting a new version. Changes apply from the start of Customer's next Renewal Term.

12.3 This Agreement is the entire agreement between the parties about the Service.